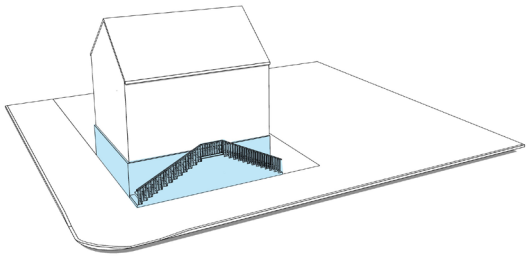
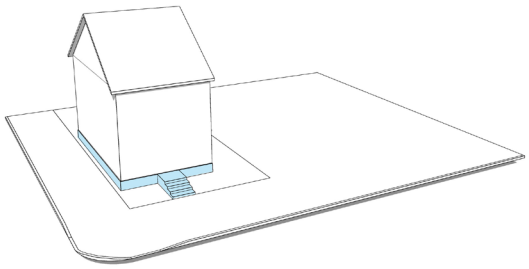
ILLUSTRATION 4.3.7.C.3 (GRAND STAIR STRATEGY)



4. Base Strategy. In this strategy the Lowest Floor is raised with a stoop and stair, as illustrated generally in **Illustration 4.3.7.C.4 (Base Strategy)**. The location along the Facade will be based on the Principal Entrance location. This strategy is generally used for Residential Uses, but may be considered for Commercial Uses.

ILLUSTRATION 4.3.7.C.4 (BASE STRATEGY)



4.3.8 Building Types

A. General.

Principal Buildings must be of one or more of the Principal Building Types specified for such District in **Table 4.3.8.A (Principal Building Types – Summary)** and **Table 4.3.8.B (Principal Building Types – Specific Standards).**

4.3.9 Uses

A. General.

1. Buildings and Lots or Building Sites must comply with the Use standards and requirements of this Section 4.3.9.

2. Principal Uses, Accessory Uses, and Temporary Uses are Permitted by Right ("P"), Permitted by Right with Limitations ("PL"), as Special Permit Uses ("SPU"), or Not Permitted ("NP") within each District, in each case as indicated in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses)**, **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**, and **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**.

3. Principal Uses, Accessory Uses, or Temporary Uses, as applicable, of Buildings and Lots or Building Sites which are indicated in **Table 4.3.9.A (Building & Lot Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses), or Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P"), Permitted by Right with Limitations ("PL"), or as Special Permit Uses ("SPU"), are permitted within each District, subject to compliance with all applicable standards, conditions and requirements thereof and obtaining all applicable approvals and permits therefor, including without limitation in the case of Uses Permitted by Right with Limitations ("PL") and Special Permit Uses ("SPU"), compliance with the applicable Use standards of Section 4.3.11.F, and in the case of Special Permit Uses ("SPU"), a Special Permit pursuant to Section 8.4.8.

4. Without limitation, Accessory Uses must be subordinate and customarily incidental to a permitted Principal Use on the Lot.

5. Multiple Principal Uses that are allowed within a District may exist within a single Building, Lot, or Building Site, subject to compliance with all other applicable standards and requirements.

B. Uses Permitted by Right.

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Principal Uses, Accessory Uses, or Temporary Uses, as applicable, of Buildings, Lots, and Building Sites, which are indicated for each District in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses),** or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P") are allowed by right, subject to compliance with all other applicable provisions of these Regulations.

C. Additional Standards for Uses of a certain size.

In addition to the Use standards listed in **Table 4.3.9.A (Building, Lot & Building Site Principal Uses)** and **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses):**

1. Any proposed Building, with a Footprint of 5,000 sqaure feet or more or a gross Floor Area of 20,000 square feet or more shall be subject to Section 8.4.5, Site Plan Review, unless a Special Permit is required in which case the Building is subject to Section 8.4.8, Special Permits.

2. Any change in Use with a gross Floor Area of twenty thousand (20,000) square feet or more shall be subject to Section 8.4.5, Site Plan Review, unless a Special Permit is required in which case the Use is subject to Section 8.4.8, Special Permits.

D. Prohibited Uses.

Except as otherwise determined by the Planning and Zoning Director pursuant to Section 8.2.1 with respect to a Use that is not specifically listed as Permitted ("P"), Permitted by Right with Limitations ("PL"), or as a Special Permit Use ("SPU") in **Table 4.3.9.A (Building & Lot Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses),** or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**, and any Use that is specifically listed Not Permitted ("NP") in such applicable Table or is otherwise prohibited pursuant to any other provision of the City Code, is prohibited.

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
RESIDENTIAL															
Boarding or Rooming Houses	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	NP	NP	SPU	NP	NP	NP
Community Residences	NP	NP	SPU	SPU	SPU	SPU	SPU	SPU	SPU	NP	NP	NP	NP	NP	NP
Congregate Housing	SPU L **	SPU L	SPU L	SPU L	P <12 units; SPU 12+ units	NP	SPU	SPU	SPU	NP	NP	NP	NP	SPU	NP
Dormitory	NP	NP	NP	NP	PL	NP	PL	PL	NP	NP	NP	NP	NP	NP	P
Elderly Housing Units	NP	NP	SPU L	SPU L	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Group Home	PL	PL	PL	PL	SPU	NP	SPU	SPU	NP	NP	NP	NP	NP	NP	NP
Halfway House	PL	PL	PL	PL	PL	NP	NP	PL	NP	NP	NP	NP	NP	NP	NP
Large Multifamily Building	NP	NP	NP	NP	PL	NP	PL	PL	PL	NP	NP	NP	NP	SPU	NP
Residential Portion of Flex Building Type	NP	NP	NP	NP	P	NP	PL	P	P	NP	NP	PL	NP	PL	NP
Residential Portion of Live/Work Building Type	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	NP
Residential Portion of Mid-Rise Building Type	NP	NP	NP	NP	NP	NP	PL	PL	PL	NP	NP	NP	NP	NP	NP
Residential Portion of Mixed Use Building Type	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	NP
Single-Family Detached Dwelling	P *	P	P	P	P	P	P	NP	NP	NP	P	NP	NP	NP	NP
Small Multifamily Building	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	NP	NP	SPU	NP
Townhouse	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	SPU L	NP
Two-Family Detached Dwelling	NP	NP	NP	P	P	P	P	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P	PL	SPU	NP	NR
Permitted by Right	Permitted by Right with Limitations	Special Permit Use	Not Permitted	Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
LODGING															
Bed & Breakfast	SPU L	SPU L	SPU L	SPU L	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Extended Stay Hotel	NP	NP	NP	NP	NP	NP	SPU L	PL	NP	NP	NP	NP	NP	NP	NP
Hotel	NP *	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	SPU	NP
Inn	NP *	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Lodge	SPU L	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Motel	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	NP	NP	NP	NP
OFFICE															
Business Service Establishment	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	SPU	NP
Financial institutions	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	PL	NP	NP	NP
Government Agencies & charitable organizations	NP	NP	NP	NP	P	P	P	P	P	P	NP	PL	NP	P	P
Medical office	NP	NP	NP	NP	PL	PL	P	P	P	P	NP	PL	NP	NP	SPU
Offices	NP	NP	SPU L	SPU L	PL	PL	P	P	P	P	NP	PL	NP	P	P
COMMERCIAL															
RECREATIONAL & ENTERTAINMENT USES															
Adult Day Care Facility	NP	NP	NP	NP	P	P	P	P	P	P	NP	P	NP	NP	NP
Amphitheater	NP	NP	NP	NP	PL	PL	PL	SPU	SPU	NP	NP	PL	NP	NP	P
Automobile Trailer Park	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Commercial Recreation Establishment	NP	NP	NP	NP	NP	NP	PL	PL	PL	NP	NP	NP	NP	NP	NP
Event Space	SPU ***	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Golf Club	SPU	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU

LEGEND The following notations are utilized in this table.

L Limitations also required

*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay

**Not Permitted in Silvermine Tavern Village District Overlay

***Permitted by Special Permit in Silvermine Tavern District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Health Club	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	NP	NP
Social clubs	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	P
Theater	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	NP	P
PARKING															
Parking Lot	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
Parking Structure	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
DINING & ALCOHOLIC BEVERAGE ESTABLISHMENTS															
Brew Pub/Distillery	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	NP	NP
Restaurant	NP*	NP	NP	NP	PL	PL	P	P	P	NP	NP	NP	NP	P	SPUL
RETAIL & PERSONAL SERVICE USES															
Animal Care Center	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	PL	NP	NP
Artist Live/Work	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	P
Artist Studio or Workspace	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	P	P
Cannabis Delivery Service	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Dispensary Facility	NP	NP	NP	NP	NP	NP	SPUL	NP	NP	NP	NP	NP	NP	NP	NP
Cannabis Hybrid Retailer	NP	NP	NP	NP	NP	NP	SPUL	NP	NP	NP	NP	NP	NP	NP	NP
Cannabis Retailer	NP	NP	NP	NP	NP	NP	SPUL	NP	NP	NP	NP	NP	NP	NP	NP
Development Park	NP	NP	NP	NP	NP	NP	NP	SPUL	NP	NP	NP	NP	NP	NP	NP
Funeral Home	NP	NP	NP	NP	SPU	NP	SPU	NP	NP	NP	NP	NP	NP	NP	NP
Medical Marijuana Dispensary	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P	PL	SPU	NP	NR
Permitted by Right	Permitted by Right with Limitations	Special Permit Use	Not Permitted	Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Personal Service Establishment	NP	NP	NP	NP	PL	PL	P	P	P	NP	NP	P	NP	P	NP
Printing Establishment	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Retail Sales	SPU L	SPU L	SPU L	SPU L	PL	PL	P	P	P	NP	NP	NP	NP	NP	NP
Tobacco/Vape shop	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
ADULT USES															
Adult Use Establishment	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	PL	NP	NP	NP
CIVIC															
RELIGIOUS FACILITIES															
Religious Facilities	SPU L	SPU L	SPU L	SPU L	P	P	P	P	P	NP	NP	NP	NP	P	NP
CIVIL SUPPORT															
Cemetery	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
Firehouse/Police Station	P **	P	P	P	P	P	P	P	P	NP	NP	P	P	P	P
CULTURAL & ENTERTAINMENT															
Amphitheater	NP	NP	NP	NP	PL	PL	PL	SPU	SPU	NP	NP	PL	NP	NP	P
Auditorium, Community Center, or other Place of Assembly	NP	NP	NP	NP	PL	PL	PL	PL	PL	P	NP	NP	NP	NP	P
Library	NP	NP	NP	NP	P	P	P	P	P	P	NP	NP	NP	NP	P
Maritime Center	NP	NP	NP	NP	NP	P	P	P	P	NP	NP	NP	NP	P	P
Museum	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	P	PL
Performing arts theater	NP	NP	NP	NP	P	P	P	P	P	NP	NP	NP	NP	P	PL
RECREATION															
Community Garden	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P

LEGEND The following notations are utilized in this table.
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**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Green	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Open Space	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR	NR
Park	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Playground	P	P	P	P	P	P	P	P	P	NR	NR	NR	NR	NR	P
Plaza	NP	NP	NP	NP	P	P	P	P	P	NR	NR	P	NR	NR	P
Pocket Park	P	P	P	P	P	P	P	P	P	NR	NR	P	NR	NR	P
Sport Field	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU[L]
Square	NP	NP	NP	NP	P	P	P	P	P	NR	NR	P	NR	NR	P
TRANSPORTATION															
Boat Terminal	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	SPU	P
Bus Storage Terminal	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Municipal Public Parking	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	P	P	P
Railroad Station	NP	NP	NP	NP	SPU	NP	SPU	SPU	SPU	NP	NP	SPU	SPU	SPU	P
Transportation Terminals	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	NP	NP	SPU	SPU	SPU	P
OTHER CIVIC USES NOT SPECIFICALLY LISTED UNDER ANY CATEGORY	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P
AGRICULTURAL															
Farmers market	NP	NP	NP	NP	P	P	P	P	P	NP	NP	P	NP	NP	P
Landscape Nursery	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	P	NP	NP	NP
INSTITUTIONAL															
HEALTHCARE															

LEGEND The following notations are utilized in this table.
[L]Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Convalescent/Nursing/ Rest Home	SPU L	SPU L	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	P	NP	SPU	NP	NP	NP
Hospital	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP	NP	NP	NP
EDUCATION															
Child Day-Care Center	SPU L	SPU L	SPU L	SPU L	PL	PL	PL	PL	PL	PL	NP	NP	NP	PL	PL
College or University	NP	NP	NP	NP	SPU	SPU	SPU	SPU	SPU	SPU	NP	NP	NP	NP	SPU
Elementary or Secondary School	SPU L	SPU L	SPU L	SPU L	SPU	NP	P	P	P	SPU	NP	NP	NP	NP	SPU
School or Institution for the disabled	SPU L	SPU L	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	SPU	NP	SPU	NP	NP	SPU
Trade or Vocational School	NP	NP	NP	NP	PL	PL	PL	PL	PL	PL	NP	PL	PL	SPU L	PL
Youth Day Camp	NP	NP	NP	NP	P	P	P	P	NP	SPU	NP	NP	NP	NP	P
MARINE & VESSEL USES															
MARINE															
Boat-Building facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Boat repair and service facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Boat sales, rental or leasing	NP	NP	NP	NP	NP	P	P	NP	P	NP	NP	P	P	P	NP
Boat storage	NP	NP	NP	NP	NP	P	P	NP	P	NP	NP	P	P	P	NP
Commercial boat dock	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Commercial fishing facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Finfish and shellfish processing plant	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	SPU	P	P	NP

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Harbor/Port Facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
INDUSTRIAL PROCESSING FACILITIES DEPENDENT ON WATERBORNE TRANSPORTATION FOR THE SUPPLY OF PRODUCTS	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP
Marina	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Enforcement Facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Research Laboratory	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Marine Supply Store	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Recreational boating or fishing facility	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Sail Loft	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
Ship Chandlery	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Shipyard	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	P	P	P	NP
Waterfront Club	SPU L	SPU L	SPU L	SPU L	SPU L	PL	SPU L	SPU L	PL	NP	NP	NP	NP	PL	PL
OTHER WATER-DEPENDENT USES NOT SPECIFICALLY LISTED UNDER ANY CATEGORY	NP	NP	NP	NP	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
AUTOMOTIVE USES															
Car Club	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP
Motor Vehicle Body Shop	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	SPU	NP	NP	NP

LEGEND The following notations are utilized in this table.
[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	SPU L	NP	SPU	NP
Motor Vehicle Sales, Rental or Leasing	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
INDUSTRIAL & UTILITIES															
INDUSTRIAL															
Building Materials Storage Yards	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P <20,000 SF / SPU >20,000 SF	NP	NP
Cannabis Cultivator	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Food & Beverage Mfg.	NP	NP	NP	NP	NP	NP	PL	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Product Manufacturer	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Micro Cultivator	NP	NP	NP	NP	NP	NP	SPU L	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Producer	NP	NP	NP	NP	NP	NP	SPU L	SPU L	NP	NP	NP	PL	PL	NP	NP
Cannabis Product Packager	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Cannabis Transporter	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	PL	NP	NP
Commercial Vehicle Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	P	NP	NP
Composting Centers	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	NP	NP
Concrete Plants	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Distribution (Fulfillment) Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP

LEGEND The following notations are utilized in this table.
LLimitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Earth Processing and Contractor's Materials Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP
Indoor Contractor Facility	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	PL	P	NP	NP
Junkyard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP
Landscape Nursery	NP	NP	NP	NP	NP	NP	PL	NP	NP	NP	NP	PL	P	NP	NP
Manufacturing & Processing, Boutique	NP	NP	NP	NP	SPU	SPU	PL	P	P	NP	NP	P	P	NP	NP
Manufacturing & Processing, Light	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	PL	P	NP	NP
Manufacturing & Processing, Heavy	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP
Natural Gas Storage	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Oil or Petroleum Storage Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Propane Gas Storage	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Recycling Operations	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	SPU	NP	NP
Research and Development Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	P	NP	NP
Robot Competition Venue	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	SPU L	NP	NP	NP
Rock Crushing/ Processing Facility (Indoor only)	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Self-Storage Facility	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP	NP	NP	NP
Solid Waste Transfer Station	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP
Warehouse	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP

LEGEND The following notations are utilized in this table.
[L]Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.A BUILDING, LOT & BUILDING SITE PRINCIPAL USES

PRINCIPAL USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
UTILITIES															
Municipal Sewage Treatment Facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	NP
Municipal Utility Plant or Storage Yard	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU	SPU	NP	NP
Public Utility Supply and Storage	SPU L	SPU L	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU
Wireless Telecommunications Facility	SPU	NP	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU	SPU

E. Accessory Uses.

1. Accessory Uses are Permitted by Right ("P"), Permitted by Right with Limitations ("PL"), as Special Permit Uses ("SPU"), or Not Permitted ("NP"), as indicated in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**.

2. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "P" (Permitted Accessory Use) are permitted in the applicable District, as indicated, if subordinate and customarily incidental to a permitted Principal Use existing on the Lot or Building Site.

3. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "SPU" (Special Permit Use) are permitted in the applicable District, as indicated, if compliant with all applicable standards, requirements and conditions of Section 4.3.9.F, and subject to issuance of a Special Permit pursuant to Section 8.4.8.

4. Those Uses shown in **Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)** as "PL" (Permitted by Right with Limitations) are permitted

5. In the applicable District, as indicated, if compliant with all applicable standards, requirements and conditions of Section 4.3.9.F.

LEGEND The following notations are utilized in this table.
L Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Accessory Dwelling Unit	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP
Automated Parking	NP	NP	NP	NP	NP	NP	NP	SPU	NP	NP	NP	NP	NP	NP	NP
Boathouses, Boat Landings, and Boat Docks (when not conducted as a business)	P	P	P	P	NP	P	NP	NP	P	NP	NP	NP	NP	P	NP
Boat Storage	PL	PL	PL	PL	PL	PL	PL	NP	PL	NP	PL	PL	PL	PL	P
Boutique Manufacturing	NP	NP	NP	NP	PL	PL	PL	PL	PL	P	NP	P	P	NP	NP
Cellular Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Commercial Communication Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Drive-Through Facilities	NP	NP	NP	NP	NP	NP	PL	NP	NP	P	NP	NP	NP	NP	NP
Electric Power Generator	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Emergency Communication Antenna	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL
Family Day-Care Home	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP	NP	NP
Garage	P	P	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP
Greenhouse	P	P	P	P	P	P	P	P	P	NP	NP	P	P	NP	NP
Green Roof	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Group Day-Care Home	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP	NP	NP

LEGEND The following notations are utilized in this table.
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**Not Permitted in Silvermine Tavern Village District Overlay

P Permitted by Right	PL Permitted by Right with Limitations	SPU Special Permit Use	NP Not Permitted	NR Not Regulated

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Helicopter Landing Site	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU L	NP	NP	NP	NP	NP
Home Office, Occupation, or Business	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	NP
Industrial office and/or showroom space	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	PL	PL	NP	NP
Live Music	NP *	NP	PL	NP	PL	PL	PL	PL	PL	NP	NP	PL	NP	PL	P
Municipal Motor Vehicle repair facility as part of municipal off-street public parking facility	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	SPU
Neighborhood Clubhouse	P	P	P	P	P	P	P	P	NP	NP	NP	NP	NP	NP	NP
Nursery School within Religious Institution	SPU	SPU	SPU	SPU	P	P	P	P	P	NP	NP	NP	NP	P	NP
Outdoor Dining	PL	PL	PL	PL	PL	PL	PL	PL	PL	P	NP	PL	NP	PL	NP
Parking Area	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Parking Structure	NP	NP	NP	NP	P	P	P	P	P	P	NP	P	P	P	P
Retail Sales of goods manufactured, warehoused, or distributed on premises	NP	NP	NP	NP	NP	NP	NP	NP	NP	P	NP	PL	PL	NP	NP
Rooftop Garden	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Ship Storage	SPU L	SPU L	SPU L	SPU L	NP	PL	PL	NP	PL	NP	PL	PL	PL	PL	P
Solar Panels – Freestanding	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	P
Sport Field	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	SPU L	PL

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[L] Limitations also required
*Permitted by Right with Limitations in Silvermine Tavern Village District Overlay
**Not Permitted in Silvermine Tavern Village District Overlay

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TABLE 4.3.9.D BUILDING, LOT & BUILDING SITE ACCESSORY USES

ACCESSORY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Sports Court	PL	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP
Solar Panels – Roof Mounted	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	PL	P
Storage of commercial vehicle(s)	PL **	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	SPU L	PL	PL	NP
Storage of not more than one unregistered vehicle	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP	NP
Warehousing	NP	NP	NP	NP	PL	PL	PL	PL	PL	NP	NP	PL	PL	PL	PL
Other Accessory Uses which are incidental to, subordinate to, and customarily associated with a Principal Use	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P

F. Temporary Uses

1. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted ("P") are allowed by right, subject to the issuance of a Temporary Use Permit.

2. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Permitted by Right with Limitations ("PL") are allowed by right provided that the applicable standards and requirements are met, subject to the issuance of a Temporary Use Permit.

3. Temporary Uses indicated in **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)** as Not Permitted ("NP"),

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not allowed as Permitted ("P") or allowed as a Permitted by Right with Limitations ("PL"), or otherwise prohibited by these Regulations are prohibited as Temporary Uses.

TABLE 4.3.9.E BUILDING & LOT/BUILDING SITE TEMPORARY USES

TEMPORARY USE	CD-1L	CD-1M	CD-1S	CD-2	CD-3	CD-3W	CD-3C	CD-4	CD-4W	SD-H	SD-IC	SD-LI	SD-HI	SD-MC	CV
Portable Storage Container	PL **	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	P
Seasonal Uses or Uses for Unusual Non-Recurrent Events, for no more than 30 days	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P
Tag/Garage/Yard Sale	PL **	PL	PL	PL	PL	PL	PL	PL	PL	NP	NP	NP	NP	NP	NP

G. Uses Permitted with Limitations.

1. Any Principal Use, Accessory Use, or Temporary Use shown for the applicable District as Permitted by Right with Limitations ("PL") or permitted as a Special Permit Use with Limitations (SPU-L) on **Table 4.3.9.A (Building & Lot Principal Uses)**, **Table 4.3.9.D (Building & Lot Accessory Uses)**, or **Table 4.3.9.E (Building & Lot Temporary Uses)**, is allowed subject to compliance with all applicable conditions and requirements imposed by this Section 4.3.9.F.

2. The conditions and requirements applicable to any Use Permitted by Right with Limitations or permitted as a Special Permit Use with Limitations (SPU-L) shall be enforceable, and failure to comply with any condition or requirement shall subject such Use to revocation pursuant to Section 8.5.2

3. A Use permitted as a Special Permit Use with Limitations (SPU-L) **Table 4.3.9.A (Building & Lot Principal Uses)**, **Table 4.3.9.D (Building & Lot Accessory Uses)**, or **Table 4.3.9.E (Building & Lot Temporary Uses)** or as a Special Permit Use (SPU) shall be subject to review, approval, and issuance of a Special Permit pursuant to Section 8.4.8.

4. The following standards shall apply only to those Districts and Uses where the "PL" or "SPU-L" is designated on the

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applicable **Table 4.3.9.A (Building, Lot & Building Site Principal Uses), Table 4.3.9.D (Building, Lot & Building Site Accessory Uses)**, or **Table 4.3.9.E (Building, Lot & Building Site Temporary Uses)**, as applicable:

a. Accessory Dwelling Units (ADU) [Rev. Eff. 4/24/26] shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) General requirements:

a. The ADU is located on the same Lot as a Single-Family Detached Dwelling;

b. The Lot shall be limited to one (1) ADU;

c. The ADU may be within and/or attached to a Principal Building or Accessory Building;

d. The owner of the Lot must reside on the Lot;

e. The minimum rental duration of the ADU shall be no less than six (6) months;

f. Lot(s) utilizing public sewer and/or water shall be subject to approval by the Norwalk WPCA and the local water authority. Lot(s) utilizing private water and/or septic systems shall be subject to approval by the Norwalk Health Department;

g. The ADU shall be designed to generally maintain the architectural design, style, and appearance similar to a Cottage Principal Building Type;

h. Recreational Vehicles, travel trailers, and any other wheeled or transportable Structures shall not be used as an ADU;

i. The ADU is subject to Section 4.3.4.C.3.a which states that the Footprint of a detached Accessory Building shall not exceed 60% of the Principal Building.

(2) Height, bulk, and location standards:

a. Attached ADUs:

i. Shall comply with Principal Building Setback requirements;

ii. Shall comply with the Height, as to Building or Structure and Total Height, as to Building or Structure for Principal Buildings permitted within the Zoning District, not to exceed 2 1/2 Stories;

iii. Shall not exceed 1,000 square feet in Floor Area;

iv. Existing Principal Building(s) that are Nonconforming in respect to Setback or Setback Area and/or Height, as to Building or Structure and/or Total Height, as to Building or Structure may convert the portion of the Building that is Nonconforming into an ADU provided that all other requirements under this section are met.

b. Detached ADUs:

i. Shall comply with Accessory Building Setback requirements, except that the Principal Building Front Setback(s) may be used provided that the ADU is not located between the Front Lot or Building Site Line and the Single-Family Detached Dwelling;

ii. Shall comply with the Height, as to Building or Structure and Total Height, as to Building or Structure for Accessory Buildings permitted within the Zoning District, not to exceed 1 1/2 Stories;

iii. Shall not exceed 1,000 square feet in Floor Area;

iv. A legally conforming or legally Non-conforming Accessory Building in existence as of the effective date of this amendment may be converted into an ADU and need not comply with Section 2.b.i, 2.b.ii, or 2.b.iii above, provided that said Accessory Building shall not be made anymore Non-conforming.

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(3) Permitting procedures:

a. Permitted by Zoning Permit in accordance with Section 8.4.10:

i. All ADUs that comply with Principal Building Setback requirements;

ii. Attached ADUs in accordance with 2.a.iv of this section;

iii. Notice of the decision shall be published in a newspaper having a substantial circulation in the City. Legal notice fees shall be the responsibility of the Applicant, who will be billed for the payment of legal notice(s) directly by the publisher of such notice.

b. Permitted by Site Plan Review in accordance with Section 8.4.5:

i. Detached ADUs that comply only with Accessory Building Setback requirements;

Detached ADUs in accordance with 2.b.iv of this section.

c. For all ADU applications, mailed notice shall be sent by the Applicant using U.S.P.S. Mail, with a Certificate of Mailing–Firm, to all owners of Lots that are within one hundred (100) feet of the subject Lot, as indicated on the Assessor's records. When a Residential condominium is located within one hundred (100) feet of the subject Lot, mailed notice may be sent to the Residential condominium association in lieu of the individual unit owners. This section shall supersede Section 8.4.4.D.6.f

d. A certificate in the form of an affidavit which verifies that the owner continues to reside on the Lot, the minimum rental duration, and all other conditions met at the time of the original application remain unchanged shall be submitted to the Planning and Zoning Director by January 31 of each year.

b. Adult Use Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Adult Use Establishment shall be allowed within one thousand (1,000) feet of another existing Adult Use Establishment. The one thousand (1,000) feet shall be measured as a straight airline distance, without regard to intervening terrain or the actual means of travel between the two (2) points, from the entrance of the proposed Adult Use Establishment to the Lot/Building Site line of an existing Adult Use Establishment, as certified by a licensed surveyor;

(2) No Adult Use Establishment shall be located within five hundred (500) feet of an existing place of worship, school or community center. The five hundred (500) feet shall be measured as a straight airline distance, without regard to intervening terrain or the actual means of travel between the two points, from the entrance of the proposed Adult Use Establishment to the Lot/Building Site line with an existing place of worship, school or community center, as certified by a licensed surveyor;

(3) No Adult Use Establishment shall be located within two hundred (200) feet of a residence zone. The two hundred (200) feet shall be measured as a straight airline distance, without regard to intervening terrain or the actual means of travel between the two points, from the entrance of the proposed Adult Use Establishment to the boundary of the residence zone;

(4) No Adult Use Establishment shall be conducted in any manner that permits the observation from any public right-of-way of any material depicting, describing or relating to the adult use activities or products located therein, specifically those activities or products in the adult use definition; and

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(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

c. Amphitheater (Civic) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) It shall comply with the City of Norwalk Noise Control Ordinance;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property.

d. Amphitheater (Commercial) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) It shall comply with the City of Norwalk Noise Control Ordinance;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property.

e. Animal Care Center shall be permitted in accordance with the applicable Use Table provided that facilities that provide overnight boarding of dogs are subject to the following:

(1) It shall be fully enclosed within a Structure located on a lot a minimum of two (2) acres in size;

(2) The Structure is located a minimum of two hundred (200) feet from a Residential Structure as certified by a licensed surveyor;

(3) That adequate provisions are made to control noise and odors emanating from the facility; and

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

f. Artist Live/Work shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) When such Use is included as part of a new Development or Redevelopment it shall occur within a Live/Work Building;

(2) The Residential portion of the Artist Live/Work Use shall be located behind and/or above the workspace;

(3) The Residential portion of the Artist Live/Work Use shall be included in the maximum allowable number of Dwelling Units on the Lot/Building Site provided that the Use shall count as 1/2 of a Dwelling Unit;

(4) All materials or products used shall be stored entirely within the Structure;

(5) All noise, vibration, smoke, dust, or other particulate matter, heat, humidity, glare or other effects shall comply with City standards relating to noise, light, dust and odors.

g. Auditorium, Community Center or other Place Of Assembly shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The locations, size and design of such facilities shall be situated so that the proposed Development shall be compatible with the Development within the surrounding area thus reducing the impact upon the surrounding area;

(2) Any lighting provided at such facilities shall be designed so that no direct light falls on Adjacent Residential property; and

(3) Accessory Uses may be permitted in conjunction with the Principal Use of the property provided that such uses are physically designed as a part of or within the Principal Structure. Such Uses may include food sales, beverage sales, gift or souvenir shops, and similar activities.

h. Automobile Trailer Park shall be permitted in accordance with the applicable Use Table, subject to the following:

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(1) No new Automobile Trailer Parks are permitted. Any expansion or alteration of an existing Automobile Trailer Park, shall require approval of a Special Permit pursuant to Section 8.4.8.

i. Bed & Breakfasts shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) They are only located on parcels that contain 1.5 times the minimum Lot Area for the underlying zone,

(2) The Building Typology is consistent with the permitted Structures in the zone,

(3) No more than six (6) rooms shall be offered for overnight guest accommodations,

(4) All parking is located to the rear of the Structure and is not visible from Abutting Parcels,

(5) Parking shall not be located within any Yard Setbacks,

(6) There is a minimum ten (10) foot landscape buffer between the subject Parcel and any Abutting residential Parcel.

j. Boat Storage shall be permitted in accordance with the applicable Use Tabl, subject to the following:

(1) May be accessory to any Marine & Vessel Use as listed in Table 4.3.9.A subject to the following:

(a) The area dedicated to Boat Storage shall be in the Rear Yard only and must be Screened from Frontage and Civic Space by Building(s), Streetscreen, or landscaping.

(2) May be accessory to a Single-Family Detached Dwelling or a Two-Family Detached Dwelling/Duplex subject to the following:

(a) No more than two (2) Boats shall be stored on a Property which may include a Trailer/towing mechanism for transport (not more than one (1) Trailer/towning mechanism per allowed Boat).

(b) All Boats shall be stored in the Rear Yard only.

k. Boutique Manufacturing (Accessory Use) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Boutique manufacturing shall be allowed as an Accessory Use to a permitted retail Use, subject to compliance with the following requirements:

(a) Such boutique manufacturing shall not exceed three thousand (3,000) square feet in area and shall be directly related to the Principal permitted retail Use; and

(b) All manufacturing activity, including the storage of all equipment, materials and products, shall occur inside the Building; no outside storage of any kind is permitted; and

(c) Only manufacturing processes that are not offensive with regard to noise, light, dust and odors, and which have the same or lesser impact than the Principal retail Use are permitted; and

(d) The manufacturing activity shall occupy an area of no more than sixty percent (60%) of the gross floor area occupied by the associated retail establishment; and

(e) The manufacturing process is principally artisan or fabrication by hand, and shall not include mass production or assembly line operations; and

(f) The manufacturing operations will not generate excessive traffic volumes or truck traffic in excess of that typically occurring in the adjacent District or neighborhood; all loading activity shall occur during daytime hours only.

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l. Business Service Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) 2,500–5,000 square feet requires Site Plan Review, if greater than 5,000 square feet it shall require approval of a Special Permit pursuant to Section 8.4.8.

m. Cannabis Cultivator shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a

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manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

n. Cannabis Delivery Service shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Delivery Services and Transporters located within an industrial zone shall be permitted and subject to the same conditions as Commercial Vehicle parking.

(16) Said facilities comply with all applicable Site Plan standards of these regulations.

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(17) Delivery Services and Transporters shall be considered a warehousing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

o. Cannabis Dispensary Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

(d) One (1) Retailer and two (2) Hybrid Retailers.

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(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8. of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut.

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

p. Cannabis Food & Beverage Mfg. shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

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(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off–street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

q. Cannabis Hybrid Retailer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be

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permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

(d) One (1) Retailer and two (2) Hybrid Retailers.

(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8 of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or

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Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut.

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

r. Cannabis Manufacturer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis

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Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off–street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

s. Cannabis Micro Cultivator shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

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(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

t. Cannabis Producer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis

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Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off–street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

u. Cannabis Product Packager shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the

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new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68–5 of the Code of Ordinances, as amended.

(14) Off–street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Said facilities comply with all applicable Site Plan and/or Special Permit standards of these regulations.

(16) Cultivators, Food and Beverage Manufacturers, Micro Cultivators, Packagers and Producers shall be considered a manufacturing use for the purpose of calculating the required number of off–street parking spaces pursuant to these Regulations.

(17) A written odor abatement program describing all odor control and abatement measures installed on the site and within the structure to ensure that cannabis odors do not emanate from the proposed facility.

v. Cannabis Retailer shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

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(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning district.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Within the City, there shall be a maximum of

(a) Three (3) Retailers; or

(b) Three (3) Hybrid Retailers; or

(c) Two (2) Retailers and one (1) Hybrid Retailer; or

(d) One (1) Retailer and two (2) Hybrid Retailers.

(16) Said facilities shall be located and accessed from a Commercial Thoroughfare street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(17) Said facilities shall be located on a parcel that meets the minimum lot standards for the zone.

(18) Said facilities comply with all applicable Special Permit standards pursuant to Section 8.4.8 of these regulations.

(19) Retailers, Dispensary Facilities and Hybrid Retailers shall be considered a retail use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

(20) Dispensary Facilities, Hybrid Retailers, and Retailers shall operate only between the hours of Monday through Saturday 9:00 AM to 8:00 PM, and on Sundays from 9:00 AM to 6:00 PM.

(21) No Dispensary Facilities, Hybrid Retailer, or Retailer shall be located within one-thousand (1,000) feet of a child day care center, nursery/pre-kindergarten, kindergarten, elementary or secondary school, college or university, or within five hundred (500) feet of any charitable institution, including any offices thereof, whether supported by public or private funds, healthcare facility, municipal building used for public gathering (City Hall, libraries, concert halls, etc.), public park, public recreation area, licensed adult day care center, dependency treatment center, shelter for the homeless, transitional housing facility, or place of worship. The distance shall be measured in a straight line from the nearest legal parcel boundary line of the land used for said purpose to the main pedestrian entrance of the cannabis hybrid retailer or cannabis retailer. To comply with the distance restrictions in this section, the applicant shall submit an area plan showing the location of the proposed Dispensary Facility, Hybrid Retailer or Retailer, indicating the name and address of any of the uses to which said distance restrictions apply. The area plan shall also include the name, address, and seal of

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the individual or firm preparing said plan; north point or arrow; graphic scale; and intervening lot lines, roads, driveways, and intersections in sufficient detail for orientation to the area, and any additional information deemed necessary by the Commission to determine compliance with this section. The area plan shall be prepared, signed and sealed by a land surveyor licensed and registered in the State of Connecticut, at a scale of 1" equals 60' or smaller (1"=>60') and drawn in accordance with an applicable Class A–2 Survey which complies with the 1976 code adopted by the CT Association of Land Surveyors, as amended. Area plans shall be drawn on standard sheet sizes of 24"x36" unless otherwise authorized by the Planning and Zoning Department prior to submission

(22) No lot, upon which contains a Dispensary Facility, Hybrid Retailer, or Retailer, shall be closer than one (1) mile from another lot, which contains a Dispensary Facility, Hybrid Retailer, or Retailer. The distance shall be measured in a straight line from the nearest legal parcel boundary line of one lot to the nearest legal parcel boundary line of the other lot.

(23) For up to thirty days after the opening of a Retailer or Hybrid Retailer, the Commission may require the applicant reimburse the City for reasonable costs incurred for the provision of public safety services in relation to the grand opening of the facility, including, but not limited to, public safety costs incurred to direct traffic, not to exceed fifty thousand dollars.

w. Cannabis Transporter shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Connecticut State regulations and laws, including all State licensing requirements, shall be adhered to and form the basis for local regulation of Cannabis Establishments.

(2) No cannabis shall be applied, ingested, or consumed inside the premise of a Cannabis Establishment.

(3) Only one (1) Cannabis Establishment shall be located within a facility.

(4) Cannabis Establishments shall be permitted as principal uses and allowed as an accessory use to any other permitted or special permit use.

(5) Refuse areas for Cannabis Establishments shall be screened from view and shall be locked to prevent unauthorized access.

(6) All signage shall comply with Article 7 of these Regulations and the requirements of the State of Connecticut Department of Consumer Protection, as amended.

(7) Prior to issuance of a Zoning Permit for a Cannabis Establishment, a copy of the final Cannabis Establishment license for the Cannabis Establishment use issued to the applicant by the State of Connecticut Commissioner of the Department of Consumer Protection or other department or licensor as may be sanctioned by the State of Connecticut shall be provided to the Planning and Zoning Director. The applicant for the Cannabis Establishment use shall be the licensee.

(8) If there is a change in operator or licensee, the new operator or licensee shall provide the new State license to the Commission.

(9) The City in approving any Cannabis Establishment may impose such reasonable conditions as will ensure compliance with these Regulations.

(10) No variance shall be granted to allow a Cannabis Establishment in any other zoning District.

(11) No waiver to site plan requirements shall be allowed for any Cannabis Establishment.

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(12) All applications must include a copy of the provisional license for the Cannabis Establishment use issued by the State of Connecticut Department of Consumer Protection.

(13) A written security plan to ensure the contents of the building are secured, which such plan shall also be reviewed and approved by the Chief of Police or their designee. All security plans shall include information on vaults for the safe keeping of cannabis product and provisions for the installation of video cameras. Outdoor audible alarms are required for all Cannabis Establishments. Alarm systems are subject to the provisions of Chapter 68-5 of the Code of Ordinances, as amended.

(14) Off-street loading spaces for cannabis establishments shall comply with Section 4.3.14 of these Regulations.

(15) Delivery Services and Transporters located within an industrial zone shall be permitted and subject to the same conditions as Commercial Vehicle parking.

(16) Said facilities comply with all applicable Site Plan standards of these regulations.

(17) Delivery Services and Transporters shall be considered a warehousing use for the purpose of calculating the required number of off-street parking spaces pursuant to these Regulations.

x. Cellular Antenna shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Accessory Use shall not exceed twenty-five feet (25') in Height.

y. Child Day-Care Center shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1L, CD-1M, CD-1S and CD-2:

(a) A Single-Family Detached Dwelling may contain a Child Day-Care Center provided that:

i. There shall be a maximum occupancy of eighteen (18) children.

ii. The Structure must be a Principal Building Type that is permitted within the Zone.

iii. The hours of operation shall be limited to 6:00am to 8:00pm, unless approved by the Connecticut Office of Early Childhood (OEC) for overnight care.

iv. Shall not impair traffic flow, including but not limited to the safety of neighborhood student(s) before and after school, the operation of pick up and drop off, etc.

v. The Property and Use shall be owner occupied and operated with a permitted Residential Use.

vi. The otudoor play area shall be screened from view from adjacent properties to the side and rear by screening and/or landscaped buffers.

vii. Shall require approval of a Special Permit pursuant to Section 8.4.8.

(b) Shall be permitted as an Accessory Use to the following Principal Use(s):

i. Congregate Housing; Office; Religious Facility; Elementary or Secondary School; Waterfront Club; and

ii. Shall require approval of a Special Permit pursuant to Section 8.4.8.

(c) Within the CD-3, CD-3W, CD-3C, CD-4, CD-4W, SD-H, SD-MC and CV:

i. Shall require approval of a Site Plan Review pursuant to Section 8.4.5.

z. Commercial Communication Antenna shall be permitted in accordance with the applicable

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Use Table, subject to the following:

(1) Commercial communication antennas are permitted as an Accessory Use when located on an existing Building or Structure, subject to the height limitation of that District, except that antennas mounted on existing Buildings which meet or exceed the height limitation of that District may extend above the existing Building height by no more than fifteen (15) feet;

(2) The color of the Building shall be incorporated into the design of the antenna; and

(3) Any equipment Structures shall meet the Building Setbacks and be effectively Screened from Adjacent properties.

aa. Commercial Recreation Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Application is required for any Commercial Recreation Establishment over 5,000sf in Floor Area in the CD-4 and CD-4W zones, and over 10,000sf in the CD-3C zone, pursuant to Section 8.4.5.

(2) Shall not exceed a Floor Area of 15,000sf in the CD-4 or CD-4W zones.

(3) A Special Permit is required for any Commercial Recreation Establishment over 20,000sf in Floor Area in the CD-3C zone, pursuant to Section 8.4.8.

ab. Commercial Vehicle Storage Yards shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall require a Site Plan Application pursuant to Section 8.4.5 on a lot with an area of <20,000 SF. Shall require a Special Permit pursuant to Section 8.4.5 on a lot with an area of >20,000 SF, subject to review an approval of an environmental impact report.

ac. Congregate Housing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-1L shall be located on a Lot or Building Site a minimum of 3 acres;

(2) Within CD-2 shall be located on a Lot or Building Site a minimum of 1 acre; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ad. Convalescent / Nursing / Rest Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-1L shall be located on a Lot or Building Site a minimum of 3 acres;

(2) Within CD-2 shall be located on a Lot or Building Site a minimum of 1 acre; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ae. Dormitory shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The maximum Density limitations permitted within the Zoning District shall apply to Dormitory rooms;

(2) Within the CD-3, any Development between fourteen (14) and twenty-nine (29) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5 and any Development greater than twenty-nine (29) Dormitory rooms shall require a Special Permit pursuant to Section 8.4.8.

(3) Within the CD-3C, any Development between thirty (30) and one hundred and forty-nine (149) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5 and any Development greater than one hundred and forty-nine (149) Dormitory rooms shall require a Special Permit pursuant to Section

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8.4.8.

(4) Within the CD-4, any Development greater than twenty-nine (29) Dormitory rooms shall require a Site Plan Review application pursuant to Section 8.4.5.

af. Drive-Through Facilities shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Where no street separates the Use and a Residentially zoned or Residentially used property, at least 40 feet of separation shall be maintained between such Residential Lot/Building Site line and the Drive-Through facility;

(2) Drive-through Facilities must be located in the Rear Yard and the location of drive-through facilities and associated facilities (for example: communications systems and access aisles) shall be identified on all submitted Plans;

(3) Any speaker systems associated with a drive-through facility shall be designed and located so as not to be audible beyond the Lot or Building Site on which the drive-through facility is located;

(4) Vehicular access to a Drive-Through facility that is between a street or Internal Drive and a Building shall require a Lot/Building Site Buffer pursuant to Section 4.3.11 if such access is within fifty feet (50 ft.) of, and visible from, the street or Internal Drive. Such Buffer shall be installed and maintained along the entire length of such vehicular access and the Adjacent street or Internal Drive

(5) Vehicle stacking areas shall be provided in accordance with Section 4.3.12.H.

ag. Development Parks shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Development Park is only permitted within the O-MSVD.

(2) Such development is in accordance with an approved Master Plan, which contain:

(a) An A-2 survey of the proposed Development Park;

(b) A Site development plan that shows the proposed Uses, locations of proposed Buildings, Streets, anticipated lighting, walkways, Open Space, natural features, and Signage;

(c) A preliminary traffic impact analysis;

(d) A preliminary drainage analysis of existing conditions and anticipated sitewide Improvements;

(e) A zoning table indicated compliance with the Bulk and Height standard for each proposed Structure;

(f) Architectural renderings and elevations depicting the bulk and height of the proposed structures.

(g) An architectural and site Design Manual to be approved by the Commission in consultation with the Peer Review consultant.

(3) Each phase (individual application) of the Master Plan is subject to §8.45, Site Plan Review and to the following additional Limitations:

(a) Such site and building design is consistent with the Master Plan Design Manual, as verified by the Commission's peer review consultant(s).

(b) The site development plans include a zoning table indicating compliance with the Master Plan, including each bulk and height standard.

(c) Residential density does not exceed 1 unit per 500 square feet of the entire Development Park

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(d) Lot/Building Site Width, Lot/Building Site Enfrontment, Minimum building frontage buildout and Block Perimeter shall be in accordance with the approved Master Plan.

(e) Maximum front setback shall not exceed 15 feet; however, buildings shall be located as close to the street as possible, except to allow for building articulation and design consideration and public improvements.

(f) Retaining walls may exceed a maximum height of 4', provided they are engineered and all required permits are obtained.

(g) Sustainability requirements approved as part of the Master Plan.

(h) No individual Building shall exceed fifteen (15) Stories, as measured from the average grade; provided, the Commission may permit up to an additional two (2) Stories in accordance with the Development Park Design Manual.

(i) A minimum of one hundred fifty (150) square feet of recreation area per Dwelling Unit be provided, which may include courtyards, indoor recreation facilities, landscaped Roofs and outdoor recreation areas.

(j) A minimum of thirty percent (30%) of the total acreage of the Office Park Development Park is Open Space land either as private recreation space or publicly available Open Space, provided that a minimum of twenty percent (20%) of the overall Site is publicly available Open Space, as approved by the Commission. A public access easement shall be placed on the land, to be held by the Commission.

(k) The Site is designed with the following minimum Low Impact Development (LID) or Green Development techniques:

i. All Buildings must provide a minimum of twenty-five percent (25%) of either green roofs, blue roofs, or contain Solar Panels for that portion of such Roof not used for recreation area Improvements or utilities.

ii. All surface water shall be handled through on-Site retention. The use of rain gardens and bioswales is recommended and encouraged where feasible.

iii. All Parking Lots and Parking Structures must include electric vehicle charging stations, in an amount determined to be acceptable by the Commission.

iv. Sheltered bike Parking and storage must be provided, in an amount determined to be acceptable by the Commission.

v. All Landscaping shall be native species, except that the perimeter Screening may contain alternate species as approved by the Commission.

(l) Individual parcels may exceed the maximum allowable Residential Density and/or Building coverage for their individual Site(s) and have less than the minimum required Public Realm, Open Space for that Site(s), provided that the Residential density and/ or Building coverage is not exceeded for the Development Park and the required Public Realm and Open Space are met within the Development Park.

(m) Individual parcels may have less than the minimum required Parking for that Site(s), subject to Section 4.3.12.B.6. 8. Each Building containing Residential Dwelling Units complies with Section 6.12, Workforce Housing, if applicable.

(n) All Improvements within a Development Park Master Plan made subsequent to the effective date of an Development Park Master Plan approved by Special Permit shall comply with the conditions of approval, plans, and documents filed on the Norwalk

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Land Records.

ah. Earth Processing & Contractor's Materials Storage Yards shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The parcel is less than 20,000 square feet;

(2) All such equipment and material shall be stored in an environmentally safe manner behind the Front Setback line and no closer than five feet (5') to the Side or Rear Lot/Building Site lines, or ten feet (10') when abutting a Residential District;

(3) All such stockpiles shall be limited to a maximum Height of twenty feet (20') and covered when not in use. When in use, adequate measures to control dust must be employed;

(4) Native, vegetative Screening shall be utilized to ensure that materials and equipment and vehicles are Screened from Adjacent properties;

(5) Any Accessory retail sales of materials, such as topsoil, plant material, etc., is clearly incidental to the Principal Use;

(6) The storage of empty refuse containers that are used exclusively for the collection and disposal of construction debris in the construction trade are located within one hundred feet (100') of an existing Solid Waste Transfer Station that has been approved by the Department of Energy and Environmental Protection (DEEP) or its predecessor, the Department of Environmental Protection (DEP); and

(a) Neither the Contractor's Storage Yard nor the Solid Waste Transfer Station are Adjacent to Residentially zoned property; and

(b) Neither the Contractor's Storage Yard nor the Solid Waste Transfer Station are located within one thousand five hundred feet (1,500') of Interstate 95 (I-95).

ai. Elderly Housing Units shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1S:

(a) The subject property(ies) has a minimum of two (2) acres of Lot Area, as of the date of the adoption of these regulations; and

(b) The Residential Density shall not exceed one (1) unit per 6,250 square feet of Lot Area; and

(c) Structures shall be limited to Cottage, House, Estate House and/or Duplex Building Types; and

(d) The Structures shall comply with all Lot Occupation, Setback, and Building Height requirements of the CD-1S; and

(e) A minimum of twenty-five percent (25%) of the property must be set aside as Conservation area, which may be in the form of an easement in favor of the City and total of forty percent (40%) of the Site is Open Space, Public Realm or Civic Space; and

(f) Stormwater shall be mitigated using Low Impact Development (LID) techniques; and

(g) All Dwellings or Principal Structures shall have rooftop solar installed, unless it is determined to be not feasible as determined by a feasibility report.

(2) Within the CD-2:

(a) The subject property is an existing or former School, as herein defined; and

(b) The subject property has a minimum of one-and-a-half (1.5) acres of Lot Area; and

(c) The Residential Density shall not exceed one (1) unit per 1,400 square feet of Lot Area.

aj. Electric Power Generator shall be permitted

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in accordance with the applicable Use Table, subject to the following:

(1) Only permitted for emergency or peak shaving purposes as defined herein;

(a) Emergency – A condition where the local municipal utility company is experiencing a power outage in its distribution system, or is not receiving power from the electric grid or has been notified by the power grid operator of an impending emergency which likely will result in a power supply emergency as defined by Independent System Operator – New England (ISO–NE) OP–4 step 12, or any similar system reliability and status index;

(b) Peak Shaving – A program designed by the local municipal utility in which an electric power generator equipped customer is authorized by contract to reduce the load on the local electrical distribution system and the regional electric grid during periods of peak monthly demand by running on–site generation equipment at the request and direction of the local utility;

(2) One (1) electric power generator powered by natural gas only and located on the roof of a Building a minimum of six (6) stories in height, shall be permitted provided such generator does not exceed the maximum load required for the Building's operation by more than fifty percent (50%), as certified by a registered professional engineer, subject to confirmation by the Building Inspector. The operation of such generators shall be limited to no more than two hundred (200) hours per calendar year and to the operating hours of 7:00 am until 11:00 pm only, except in the case of an emergency, as herein defined. Such generators shall demonstrate compliance with the City of Norwalk Noise Ordinance and, in addition, shall show compliance with the ordinance when the decibel level of the generator in operation is measured at the highest occupied level of adjacent Building(s) and with applicable Connecticut Department of Environmental Protection air quality standards;

(3) Such generators shall not be taller than twelve (12) feet in height, shall be setback a minimum of ten (10) feet from the edge of the roof on which it is located, and shall be screened from public view, subject to the satisfaction of the Planning and Zoning Commission; and

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ak. Elementary or Secondary School shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Height provisions of these Regulations shall not prevent the erection of a public School to a Height not exceeding four (4) Stories and sixty–five (65) feet.

(2) All Buildings shall be Setback from front, side, and rear Lot/Building Site boundaries by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length measured parallel to the Lot/Building Site boundary.

(3) Buildings Setback from a side Lot/Building Site line shall not be required to exceed forty (40) feet and the Building Setback from a front Lot/Building Site line shall not be required to exceed twice the minimum Front Setback standard as that required in the District.

(4) Notwithstanding anything in these Regulations to the contrary, public Schools shall be required to provide no more than eighty (80) foot Front and Rear Setbacks and no more than a forty (40) foot Front Setback for all off–street Parking and Loading Facilities, including all Parking aisles and backup spaces.

(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

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al. Emergency Communications Antenna shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Accessory Use shall be located on an existing public utility structure and may extend above the existing structure by no more than twenty-five (25) feet.

(2) The color of the utility structure shall be incorporated into the design of the antenna and any equipment structures shall meet building setbacks and be effectively screened from adjacent properties.

am. Extended Stay Hotel shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The maximum Density limitations permitted within the Zoning District shall apply to Extended Stay Hotel rooms;

(2) No Extended Stay Hotel rooms shall be rented, leased, or otherwise let for a duration exceeding thirty (30) consecutive days.

(3) Within the CD-4, any Development greater than twenty-nine (29) Extended Stay Hotel rooms shall require a Site Plan Review application pursuant to Section 8.4.5.

an. Family Day-Care Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A maximum of 6 clients may be served at any one time;

(2) Overnight accommodation shall not be permitted;

(3) No outdoor public address systems shall be allowed; and

(4) When the facility is located within a Non-Residential area, the Fire Marshall shall review the proposal prior to approval and make a recommendation.

ao. Financial Institutions shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall not be located on the ground floor of a Building.

ap. Government Agencies & charitable organizations shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall not be located on the ground floor of a Building.

aq. Group Day-Care Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Seven (7) to Twelve (12) clients may be served at any one time;

(2) Overnight accommodation shall not be permitted;

(3) No outdoor public address systems shall be allowed; and

(4) When the facility is located within a Non-Residential area, the Fire Marshal shall review the proposal prior to approval and make a recommendation.

ar. Group Home shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Group Home shall be constructed or located within 1,000 feet of another Group Home; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

as. Halfway House shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Halfway House shall be constructed or

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located within 1,000 feet of another Halfway House;

(2) Within CD-2 shall provide no less than 250 square feet of living area per person and allow a maximum of 12 persons;

(3) Within all other permitted Districts shall provide no less than 200 square feet of living area per person and allow a maximum of 20 persons;

(4) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(5) Halfway houses for persons under the jurisdiction of the Department of Corrections shall not be permitted

at. Health Club shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Application is required for any Health Club between 2,500 SF and 5,000 SF.

(2) Health Clubs greater than 5,000 SF require a Special Permit pursuant to Section 8.4.8.

au. Helicopter Landing Site shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The landing site shall be a minimum of 300 feet from a Residence zone and flight operations shall be restricted to the hours of 7:00 am to 7:00 pm only;

(2) The Planning and Zoning Commission may approve a helicopter landing site that exceeds the height provisions of these Regulations if it is located on top of a mechanical or habitable penthouse; and

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

av. Hotel and Inn shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the Silvermine Tavern Village District Overlay only permitted in an existing Structure a minimum of 100 years old with Additions up to 50 years old (Inn built 1790 & mill in 1800); and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

aw. Home Office, Occupation, Or Business shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Limited to no more than one (1) per Dwelling;

(2) Such Use shall not alter the Residential Character of the Structure; and

(3) The owner must reside within the Principal Building.

(4) That the following are Not Permitted as a Home Office, Occupation, or Business:

(a) Clinic, Hospital, barbershop, beauty shop, Restaurant, Animal Care Center or any use involving the boarding of animals, antique dealer, Retail sales on the premises, or loading of ammunition.

ax. Indoor And Outdoor Storage Of Passenger Motor Vehicles shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No on-site motor vehicle repair, or retail or wholesale sales of motor vehicles or motor vehicle parts shall be permitted; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ay. Indoor Contractor Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No outside storage of commercial vehicles or materials on the premises;

(2) No outside operation, repair or

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maintenance of equipment or vehicles;

(3) A minimum of 10,000 square feet of Lot Area when Abutting a Residential District, and a minimum of ten feet (10') of landscaped Buffer between the Lot/Building Site line and any Site Improvements.

az. Industrial office and/or showroom space (Accessory Use) shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be located on the ground floor as an ancillary use, provided that such Use does not comprise more than 50% of the ground floor area.

ba. Junkyard shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All premises used as a junkyard or for storage of motor vehicles shall be maintained in strict accordance with the Regulation Concerning the Licensing of and Operation of Motor Vehicle Junk Yards, issued by the Commissioner of Motor Vehicles, State of Connecticut, as now in effect or as hereafter revised; and

(2) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bb. Landscape Nursery shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Any Accessory equipment used in association with the Landscape Nursery shall not be stored in the Font Yard and not visible from any adjoining Property(s);

(2) Any Accessory Retail Sales of materials, such as topsoil, plant material, etc., is clearly incidental to the Principal Use;

(3) Within the SD-HI Zone, all stockpiled materials shall be limited to a maximum Height of twenty fee (20') and covered when not in use. When in use, adequate measures to control dust must be employed;

(4) When located in the SD-LI and/or CD-3C Zone(s):

a. No more than two (2) materials storage bins are permitted for top soil or mulch only;

b. Material bins are limited to 20' x 20' in area and 10' in Height;

c. Material bins shall be covered when not in use. When in use, adequate measures to control dust must be employed;

d. There shall be no screening or sorting of materials on-site.

bc. Large Multifamily Building shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-3, any Development between fourteen (14) and twenty-nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than twenty-nine (29) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(2) Within the CD-3C:

(a) Large Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, unless:

i. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

ii. The remaining portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/Lightwell Private Frontage Type and

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separate entrance for each Townhouse unit, or any combination thereof.

(b) any Development between thirty (30) and one hundred and forty-nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than one hundred and forty-nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(3) Within the CD-4:

(a) Large Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, Water Street, Belden Avenue, Commerce Street or within the O-MSVD, unless:

i. The portion of the Building Enfronting the Street contains Townhouse(s) with a Stoop and separate entrance for each unit, or below-grade units Enfront the Street with Terrace/Lightwell(s) and the Lot or Building Site Enfronts Martin Luther King Jr. Boulevard; or

ii. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

iii. The remaining portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/Lightwell Private Frontage Type and separate entrance for each Townhouse unit, or any combination thereof.

(b) Any Development greater than twenty-nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5.

bd. Live Music shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Live Music is permitted as an Accessory Use to Restaurant, Brew Pub/Distillery, Retail (except in the Residential zones), Car Club, Silvermine Tavern Village District Overlay Uses and Waterfront Club Uses, subject to documentation verifying that the Live Music will comply with the City of Norwalk Noise Control Ordinance, as amended.

be. Lodge shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall be located on a Parcel with a minimum Lot Area of 60 acres.

(2) A minimum of 30 acres of the property is conserved.

(3) Buildings shall not exceed three (3) stories.

(4) Special events shall be governed by specific conditions of the Special Permit approval.

bf. Manufacturing & Processing, Boutique shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The operations and activities are not noxious or offensive due to emission of noise, pollutants or waste;

(2) Subject to review and approval of an environmental impact report;

(3) Warehousing and retail sales/showroom space is accessory to the Principal manufacturing Use; and

(4) Office Use supporting the Principal Use cannot be located on the ground Floor.

bg. Manufacturing & Processing, Light shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The operations and activities are not noxious or offensive due to emission of noise, pollutants, or waste;

(2) Such Use is subject to review and approval

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of an environmental impact report;

(3) Warehousing and Retail Sales/showroom space is Accessory to the Principal Manufacturing Use; and

(4) Office Use, supporting the Principal Use, cannot be located on the ground Floor.

bh. Medical Office shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Medical Office may only be located on corner lots, or Building Sites.

(b) A Site Plan Application is required for Medical Office between 2,500 SF and 5,000 SF.

(c) Medical Office over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(2) Within CD-3W:

(a) A Site Plan Application is required for Medical Office between 2,500 SF and 5,000 SF.

(b) Medical Office over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(3) Within SD-LI:

(a) Shall not be located on the ground floor of a Building.

bi. Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Service Station shall not be permitted within CD-3.

(2) Except with the permission of the Commission, under appropriate conditions and safeguards, no zoning approval shall be issued for the erection of a service station for more than five (5) motor vehicles or a motor vehicle service station or fuel sales station, or for the conversion of any premises not so used to be used for such purposes, in any business or industrial zone, if any part of the lot or plot in question is situated within a distance of two hundred (200) feet as measured along the public street of or within any portion of a street between two (2) intersecting streets, between two (2) intercepting streets, or between an intersecting or intercepting street in which portion there exists:

(a) Schools.

(b) A hospital maintained as a charitable institution or a private hospital maintaining at least fifteen (15) beds for patients.

(b) A church with a meeting capacity of three hundred (300) persons.

(c) A theater containing at least three hundred (300) seats.

(d) A public library.

(3) No existing garage for more than five (5) motor vehicles, a group of garages for more than five (5) motor vehicles or a motor vehicle service station or fuel sales station shall be deemed to become a nonconforming Use through the subsequent erection of such a school, hospital, theater or library, as defined above, within the aforesaid prescribed area;

(4) So as to reduce traffic generation and traffic hazards, after the effective date of these Regulations, no fuel sales station shall be constructed or located within two thousand (2,000) feet of an existing fuels sales station. This provision shall not, however, make nonconforming uses of fuel sales stations

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otherwise conforming as of the effective date thereof;

(5) In accordance with Section 14-54 of the Connecticut General Statutes, as revised, and any additional requirements herein, the Planning and Zoning Commission shall review and act on requests for certificates of approval of locations for licenses for dealing in or repairing of motor vehicles;

(6) Pumps shall be located in the Rear Yard;

(7) Fuel pumps shall be located at least 15 feet from any Lot/Building Site line;

(8) Any repair, servicing, maintenance or other work on vehicles shall be conducted within an enclosed Structure;

(9) No outdoor storage shall be allowed;

(10) Storage of vehicles for more than thirty (30) days is prohibited;

(11) A spill prevention and counter measures plan shall be provided prior to construction plan approval that includes, at a minimum:

(a) Clean up procedures for fuel (or other hazardous material) spills occurring inside and outside the Building;

(b) Counter measures for use in preventing fuel (or other hazardous material) spills from entering the stormwater collection system;

(c) Routine cleanup procedures for work area and Parking Areas; and

(d) Washdown water shall not be permitted to enter the stormwater collection system.

(12) No maintenance, repair, or service station shall be located in CD-3; and

(13) Within CD-3 and CD-3C shall require approval of a Special Permit pursuant to Section 8.4.8.

bj. Motor Vehicles Sales, Rental or Leasing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Junk Vehicles or inoperable vehicles or equipment shall be within a completely enclosed Building;

(2) Vehicle or equipment repairs made on-site shall be subject to the restrictions under "Motor Vehicle Maintenance, Repair, Fuel Sales, Service or Cleaning";

(3) Adequate on-site area shall exist for the loading and unloading of vehicles from car carriers to ensure that no such loading or unloading occurs in any Right-of-Way;

(4) No vehicles shall be displayed in required landscaping or in Rights-of-Way;

(5) Vehicle sales, leasing, and rental facilities shall meet the following Parking Area landscaping standards rather than those of Section 4.3.12.C:

(a) Trees shall be planted at the rate of one (1) tree per 50 linear feet, and shrubs at the rate of one (1) shrub per five (5) linear feet of display area.

(b) Plants may be grouped together, provided that at least 250 square feet of contiguous growing area, not encroached upon by impervious surfaces, surrounds each planted tree.

(6) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bk. Museum shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV, must be owned by a Governmental Agency.

bl. Offices shall be permitted in accordance with the applicable Use Table, subject to the following:

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(1) Within CD-1M:

(a) Property shall be a minimum of fifteen (15) acres;

(b) Such Office Building shall be in existence prior to 2022; and

(c) Such Use is only for businesses and professional establishments other than those primarily providing services to customers or clients on the premises.

(2) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Offices may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Offices between 2,500 SF and 5,000 SF.

(c) Offices over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(3) Within CD-3W:

(a) A Site Plan Application is required for Offices between 2,500 SF and 5,000 SF.

(b) Offices over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) 7) Within SD-LI:

(a) Shall not be located on the ground floor of a Building.

bm. Outdoor Dining shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Compliance with Chapter 45 Article IV Outdoor Dining, as amended.

(2) Within the CD-1L, CD-1M, CD-1S and CD-2:

(a) Shall be permitted as an Accessory Use to Waterfront Club and Retail Uses.

bn. Outdoor Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All Outdoor Storage shall be located only in the Rear Yard at least fifteen feet (15') from the public right-of-way and any Abutting Residential Use or Residential District.

bo. Parking Lot shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No storage, repair, or sales of vehicles shall be allowed on the site;

(2) Shall comply with all parking standards within these Regulations; and

(3) A wall or fence no more than 30 inches in height shall be placed around the perimeter of the Parking area to prevent Encroachment of vehicles into the surrounding area.

bp. Performing Arts Theater shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV, must be owned by a Governmental Agency.

bq. Personal Service Establishment shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3 Zone:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ, Offices may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for

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Personal Service Establishment between 2,500 SF and 5,000 SF.

(c) Personal Service Establishment over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(2) and CD-3W:

(a) A Site Plan Application is required for Personal Service Establishment between 2,500 SF and 5,000 SF.

(b) Personal Service Establishment over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

br. Portable Storage Container shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall be permitted for a maximum period of one (1) month in any calendar year;

(2) Shall be limited to one (1) such container placed on an individual property at any one time; and

(3) Such container shall not exceed eight (8) feet in height or one hundred and sixty (160) square feet in size.

bs. Public Utility Supply and Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The facility is operated by a licensed contractor who works exclusively for and in support of public utility companies;

(2) The subject property has a minimum of eleven (11) acres;

(3) The property shall have direct ingress and egress to a state highway;

(4) All equipment shall disable backup alarms while on the property or utilize another backup warning system that does not amplify sound; and

(5) While on property, all vehicles must comply with CT DOT Idling rules; and

(6) All such equipment and material shall be stored in an environmentally safe manner no closer than twenty-five feet (25') to the side or rear Lot/Building Site lines and not within the front Setback;

(7) Any stockpiles of materials shall be limited to a maximum height of ten feet (10') and shall be effectively screened from view from a public road and from adjacent properties;

(8) The owner shall comply with Chapter 68 of the Noise Ordinance, and, except in emergencies, the hours of operation shall be limited to weekdays from 6:00 am to 6:00 pm;

(9) All lighting shall be fully shielded and shall not trespass onto adjoining properties and a photometric plan provided to confirm that no illumination shall exceed 0.3 foot candles at the Lot/Building Site line and all lights shall be directed away from surrounding Residential properties; and

(10) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bt. Recycling Operations shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Recycling Operations proposed to include motor oil, chemicals, household appliances, and/or tires, must obtain all necessary federal, state and local permits required for the collection, processing, recycling, and transfer of these items and must be submitted to the Planning & Zoning Department prior to the approval of any Special Permit application, and must be maintained by the applicant while the Special Permit is active.

(2) Motor vehicles and parts may also be recycled at a Recycling Facility provided all federal, state, and local permits have been obtained and are maintained by the operator

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including, but not limited to, the Connecticut Department of Motor Vehicles (DMV) recycler (dismantler) license as such license type may be revised or amended.

(3) Entities that demanufacture, process, segregate, sort, and/or ship recyclable, non-decayable materials including vehicles, equipment, ferrous and non-ferrous materials/ metals, and plastics are permitted if they hold required DMV and other similar permits and licenses when these regulations are enacted.

(4) Long-term storage of solid waste or reclaimed material is not permitted.

(5) No materials stored at the site shall be visible from the public right-of-way or from an abutting property.

(6) When abutting a residential zone, there shall be a vegetated buffer, a minimum of ten (10) feet in width, which may include solid fencing.

(7) Any activities that create excessive dust or shall be conducted within an enclosed facility that meets all applicable standards for ventilation.

bu. Religious Facilities shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Lot size is twice that of the minimum required within the applicable District.

(2) All Buildings shall be Setback from front, side, and rear Lot/Building Site boundaries by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length measured parallel to the Lot/Building Site boundary.

(3) Shall require approval of a Special Permit pursuant to Section 8.4.8.

bv. Residential Portion of Flex Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI.

(2) Within SD-LI:

(a) The ground floor contains another permitted principal or Special Permit Use.

(b) A minimum of 50% of the total Building gross floor area is dedicated to a Site Plan or Special Permit Use(s).

(c) There is not more than one (1) Dwelling Unit per 1,650 square feet of Lot area; except that Artist Live/WorkSpace(s) shall be exempt from the density calculation, provided that the application is referred to the to the Arts Commission for review and consideration. If the Arts Commission does not endorse the application, a 2/3 majority vote of the Zoning Commission is required for approval.

(d) Dwelling Units are located within the same Structure(s) as the Principal Use on the property.

(e) Such units are subject to workforce housing requirements.

bw. Residential Portion of Live/Work Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI, in all other zones shall be located behind and/or above the workspace;

(2) When such Use is included as part of a new Development or Redevelopment it shall occur within a Live/Work Building;

(3) Shall be included in the maximum allowable number of Dwelling Units on the Lot/Building

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Site provided that the Use shall count as 1/2 of a Dwelling Unit;

(4) All materials or products shall be stored entirely within the Structure; and

(5) All noise, vibration, smoke, dust, or other particulate matter, heat, humidity, glare or other effects shall comply with City standards relating to noise, light, dust and odors.

bx. Residential Portion of Mid Rise Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CD-3C, any Development between thirty (30) and one hundred and forty nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than one hundred and forty nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(2) Within CD-4, any Development greater than twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5

by. Residential Portion of Mixed Use Building Type shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Such Use is not permitted on the ground Floor in SD-MC or SD-LI.

(2) Within SD-LI:

(a) The ground floor contains another permitted principal or Special Permit Use.

(b) A minimum of 50% of the total Building gross floor area is dedicated to a Site Plan or Special Permit Use(s).

(c) There is not more than one (1) Dwelling Unit per 1,650 square feet of Lot area; except that Artist Live/WorkSpace(s) shall be exempt from the density calculation, provided that the application is referred to the to the Arts Commission for review and consideration. If the Arts Commission does not endorse the application, a 2/3 majority vote of the Zoning Commission is required for approval.

(d) Dwelling Units are located within the same Structure(s) as the principal use on the property.

(e) Such units are subject to workforce housing requirements.

(3) Within CD-3, any Development between fourteen (14) and twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than twenty none (29) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(4) Within CD-3C, any Development between thirty (30) and one hundred and forty nine (149) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than one hundred and forty nine (149) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(5) Within CD-3W, any Development between three (3) and six (6) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5 and any Development greater than six (6) Dwelling Units shall require a Special Permit pursuant to Section 8.4.8.

(6) Within CD-4 and CD-4W, any Development greater than twenty nine (29) Dwelling Units shall require a Site Plan Application pursuant to Section 8.4.5.

bz. Restaurant shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within CV:

(a) A full-service, all-season Restaurant shall be permitted in a public park having one hundred twenty-five (125) acres or more and which has a standard eighteen-hole golf course;

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(b) A full-service, all-season Restaurant shall be permitted in a public park having thirty (30) acres or more which adjoins Long Island Sound;

(c) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(2) Within the Silvermine Tavern Village District Overlay:

(a) only permitted in an existing Structure a minimum of 100 years old and a minimum of ten thousand (10,000) square feet, except that no drive-in or take-out Restaurants shall be permitted; and

(b) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(3) Within CD-3:

(a) unless located on a Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O-EVTZ,, Restaurants may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Restaurants between 2,500 SF and 5,000 SF.

(c) Restaurants over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) Within CD-3W:

(a) A Site Plan Application is required for Restaurants between 2,500 SF and 5,000 SF.

(b) Restaurants over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

ca. Retail Sales shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the Silvermine Tavern Village District Overlay:

(a) only permitted in an existing Structure a minimum of 80 years old and up to three (3) Multi-family Dwelling Units or four (4) Inn rooms (store built 1920); and

(b) Shall require approval of a Special Permit pursuant to Section 8.4.8.

(2) Within CD-1L, CD-1M, CD-1S and CD-2:

(a) Package Stores and Tobacco/Vape Shops and sales are prohibited.

(b) The hours of operation are limited to 6:00am EST to 8:00pm EST .

(c) The building typology is consistent with the permitted structures in the zone.

(d) The property Enfronts a Neighborhood Connector, Urban Corridor, and/or Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(e) The property is located on a Lot that does not exceed the minimum Lot area for the zone.

(f) There shall be a minimum of 1,000 feet between any retail establishment.

(g) The total Footprint of the Structure does not exceed 2,500 square feet.

(h) The Principal Building is located no further than 20 feet from the Principal and Secondary Frontage.

(i) The Principal Entrance is accessed from the Neighborhood Connector, Urban Corridor, and/or Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended.

(j) The area between the Building and Street(s) may be Improved with an outdoor

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seating area, not to exceed 250 sf, with the remainder of the area being landscaped with native plantings.

(k) All parking is located to the side or rear of the structure and is not visible from Abutting Parcels.

(l) There is a minimum ten (10) foot landscape buffer between the subject Parcel and any Abutting residential Parcel.

(m) The amount of parking provided is consistent with Retail use, as required in Table 4.3.12.B–1 and be located and screened as required in Article 4.3.12.

(n) In addition to signage allowed in Article 7, a Post Sign is permitted and one (1) Blade Sign or one (1) Wall Sign is also permitted.

(o) Signs shall not be internally illuminated and may only be lit by downward facing decorative lighting.

(p) No temporary signs, portable signs or banners shall be installed.

(q) A maximum of two (2) Dwelling Units are permitted as accessory units to the principal use.

(3) Within CD–3 Zone:

(a) unless located on aa Main Street, Downtown Street, Neighborhood Connector, or Urban Corridor street typology per the City of Norwalk Complete Streets Design Guide, as amended, or as otherwise Permitted and/or required within the O–EVTZ, Retail Sales may only be located on Corner Lots or Building Sites.

(b) A Site Plan Application is required for Retail Sales between 2,500 SF and 5,000 SF.

(c) Retail Sales over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

(4) and CD–3W:

(a) A Site Plan Application is required for Retail Sales between 2,500 SF and 5,000 SF.

(b) Retail Sales over 5,000 SF require a Special Permit pursuant to Section 8.4.8.

cb. Retail Sales of goods manufactured, warehoused, or distributed on premise shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be located on the ground floor as an ancillary use, provided that such Use does not comprise more than 50% of the ground floor area.

cc. Robot Competition Venue shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The subject property is at least 1.5 acres in Lot Area.

(2) A traffic and parking management plan shall be required.

(3) All events shall obtain approval from the Norwalk Fire Marshal.

cd. School or Institution for the disabled shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The Height provisions of these Regulations shall not prevent the erection of a School or Institution for the disabled to a Height not exceeding four (4) Stories and sixty–five (65) feet.

(2) All Buildings shall be Setback from front, side, rear Lot/Building Site Lines by an amount not less than the minimum Setback specified in the District, plus six (6) inches for each foot of Building length in excess of forty (40) feet, such length shall be measured parallel to the Lot/Building Site boundary.

(3) Buildings Setback from a side Lot/

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Building Site Line shall not be required to exceed twice the minimum Front Setback standard as required in the District.

(4) Notwithstanding anything in these Regulations to the contrary, Schools or Institutions for the disabled shall be required to provide no more than eighty (80) feet Front and Rear Setbacks and no omre than a forty (40) foot Front Setback for all off-street Parking and Loading Facilities, including all Parking aisles and backup spaces.

(5) Shall require approval of a Special Permit pursuant to Section 8.4.8.

ce. Self-Storage Facility shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) The facility is located on a parcel a minimum of seven (7) acres in size;

(2) Such facility is located more than two hundred and fifty (250) feet from the centerline of Westport Avenue, Connecticut Avenue, Main Avenue, or Main street

(3) Any facility does not exceed 125,000 square feet.

cf. Ship Storage shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) May be accessory to any Marine & Vessel Use as listed in Table 4.3.9.A subject to the following:

(a) The area dedicated to Ship Storage shall be in the Rear Yard only and must be Screened from Frontage and Civic Space by Building(s), Streetscreen, or landscaping.

cg. Single-Family Detached Dwelling shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) In addition to the traditional Single-Family Detached Dwelling, clustered Single-Family Dwellings shall also be permitted within the Silvermine Tavern Village District Overlay subject to the following:

(a) A Special Permit is received for the clustered Single-Family Dwellings.

(b) A maximum of eleven (11), single-family dwellings, which may be clustered, with no more than

i. four (4) dwellings on 1 River Road,

ii. one (1) dwelling with a Detached Accessory Dwelling Unit on 192 Perry Avenue,

iii. no more than six (6) dwellings on 3 and 5 River Road and 1032 Silvermine Road,

iv. a total Parcel area containing a minimum of six (6) acres.

(c) New clustered Dwellings shall not exceed a maximum of four thousand four hundred (4,400) square feet of gross Floor Area per unit including a minimum of one thousand one hundred and fifty (1,150) square feet of basement floor area, and shall not exceed one and one half (1 1/2) stories and a maximum height of thirty (30) feet to the peak of a pitched roof.

ch. Small Multifamily Building shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall comply with the Workforce Housing standards Section 6.12.

(2) Within the CD-4, Small Multifamily Building Types shall not be permitted on a Main Street street typology per the City of Norwalk Complete Streets Design Guide, as amended, Water Street, Belden Avenue, Commerce Street or within the O-MSVD, unless:

a. The Lot or Building Site Area is less than or

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equal to 5,000 square feet; or

b. The Frontage Buildout is compliant and at least fifty percent (50%) of the required Frontage Buildout contains a permitted non-residential Use; and

c. The remaning portion of the Frontage Buildout contains either tenant amenity space, Artist Live/Work, and/or Townhouse(s) with a Stoop or Terrace/Lightwell Private Frontage Type and separate entrance for each Townhouse unit, or any combination thereof.

ci. Solar Panels – Roof Mounted And Freestanding shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Shall comply with the standards for Solar Panels Section 6.11.2.B.

cj. Sports Courts shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No Sports Court shall be located between the front lot line (i.e. the street right-of-way) and the dwelling as shown in the hatched area(s) below:

(2) Sports Courts are subject to double (two times) the required side and rear accessory structure setbacks.

(3) The sale of food, beverages (including alcoholic and non-alcoholic beverages), cigarettes, and other retail items is prohibited on any residential property in a residential zone containing a Sports Court.

(4) Sports Courts in residential areas are not to be operated for profit or as a commercial use.

(5) A solid fence or screen shall be installed surrounding the Sports Court, or portion thereof.

(6) All artificial lighting used to illuminate any Sports Court shall be so arranged that all direct rays from such lighting shall fall only on such Sport Court. All other relevant lighting standards as outlined in these regulations still apply.

(7) Public Address systems are prohibited on any residential property in a residential zone containing a Sports Court.

(8) Any Sports Court larger than 1,500 square feet is subject to Special Permit.

ck. Sport Field shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) All lighting shall:

a. Be Dark Sky compliant; and

b. Not exceed 0.3 footcandles at any Lot or Building Site Line and confirmation of such shall be provided by a photometric plan; and

c. Be directed away from any abutting Residential Property(s); and

d. Be limited in duration in accordance with Section 4.3.17.E.

(2) All audio systems shall be limited to the broadcast of the Sport Field event(s) and shall be limited in duration to the event, and in no case shall exceed the duration specified in Section 4.3.17.E.

(3) When permitted as an Accessory Use it must be accessory to the following Principal Use(s):

a. Park, Golf Club, College or University, Elementary or Secondary School, School or Institution for the disabled, Trade or Vocational School, Community Center, Place of Assembly or Waterfront Club.

cl. Storage Of Commercial Vehicle(s) shall be permitted in accordance with the applicable Use Table, subject to the following:

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(1) Within the CD-1L, CD-1M, CD-1S, CD-2, CD-3, CD-3W, CD-4 and CD-4W zones:

(a) No more than one (1) Commercial Vehicle shall be stored on the Property.

(b) The Commercial Vehicle shall be stored in the Rear Yard only.

(c) The Commercial Vehicle shall not exceed a Gross Vehicle Weight Rating (GVWR) of 15,000lbs or a Payload Capacity of 8,000lbs; also see "Commercial Vehicle" definition.

(2) Within the CD-3C, CD-4W, SD-H, SD-LI, SD-HI and SD-MC zones:

(a) The area dedicated to Storage of Commercial Vehicle(s) shall be in the Rear Yard only and shall be screened from Frontage and Civic Space by Building or Streetscreen; or by Building, wall, hedge or fence not at Frontages or Adjacent to Civic Space.

cm. Tag/Garage/Yard Sale shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Not to exceed three (3) per calendar year per property,

(2) Shall be allowed as an Accessory Use to a permitted Residential Use, provided that each tag sale event shall be limited to a maximum of three (3) days and is operated during daytime hours only by a resident of the property.

cn. Tobacco/Vape Shop shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) No TobaccoVape Shop shall be closer than one (1) mile from another Lot which contains another Tobacco/Vape Shop use. The distance shall be measured in a straight line from the nearest legal Lot or Building Site Line of one Lot to the nearest legal Lot or Building Site Line of the other Lot.

(2) Tobacco/Vape Shops shall post clear signage on the entrance(s) to their establishment that any person(s) under the age of eighteen (18) years old shall not enter the premises unless accompanied by a parent or legal guardian.

(3) Tobacco/Vape Shops shall not serve alcohol, have a "bring your own beverage" policy, or allow patrons to consume alcohol within their establishment.

(4) Tobacco/Vape Shops shall not display any e-nicotine delivery and/or vapor products within ten (10) feet of the façade glazing of their establishment.

(5) Said business must also obtain an electronic nicotine delivery system certificate of dealer registration from the Connecticut Department of Consumer Protection and provide that to the City prior to obtaining a Certificate of Zoning Compliance.

co. Trade Or Vocational Schools shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Training or educational programs shall be certified by the State of Connecticut

(2) Use of a Trade or Vocational School shall be limited to members of the trade or profession enrolled in apprenticeship and upgrading programs as defined in Chpater 557, Part Ia, Section 31-22m to 31-22q of the Connecticut General Statutes, as amended.

cp. Warehouse shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) A Site Plan Review, pursuant to Section 8.4.5, shall be required in accordance with Section 4.3.9.C and/or when on a Lot or Building Site that abuts a residential Zoning

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District.

(2) A Special Permit, pursuant to Section 8.4.8, shall be required for a Warehouse Use and/or Structure that exceeds twenty thousand (20,000) square feet in gross Floor Area.

(3) Motor Vehicle Storage is Permitted within a Warehouse, provided that:

a. There is not on-site motor vehicle repair which requires a K-7 license from the Connecticut Department of Motor Vehicles.

b. There is no retail or wholesale sales of motor vehicles or motor vehicle parts.

cq. Warehousing shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Warehousing shall only be Accessory to the following Use(s):

a. Cannabis Delivery Service; Cannabis Food & Beverage Mfg.; Cannabis Transporter; Manufacturing & Processing, Boutique; Manufacturing & Processing, Light; Brew Pub/Distillery; Boat-Building facility; Boat repair and service facility; Commercial fishing facility; Finfish and shellfish processing plant; Harbor/Port Facility; Marina; Ship Chandlery; Shipyard; Research and Development Facility; Municipal Utility Plant or Storage Yard; Warehouse

(2) A Site Plan Review, pursuant to Section 8.4.5, shall be required in accordance with Section 4.3.9.C and/or when on a Lot or Building Site that abuts a residential Zoning District.

cr. Waterfront Clubs shall be permitted in accordance with the applicable Use Table, subject to the following:

(1) Within the CD-1L, CD-1M, CD-1S and CD-2 zone(s):

(a) The total Building Coverage shall not exceed 25% of the Lot or Building Site Area.

(b) The total Impervious Surface Coverage shall not exceed 50% of the Lot or Building Site Area.

(c) The total Impervious Surface Coverage may be increased to 75% of the Lot or Building Site Area provided that:

(i) 75% or more of the Lot or Building Site's stormwater is retained on-site through Low Impact Development (LID) practices; and

(ii) At least 25% of the Lot or Building Site Area, excluding the beach area landward of the mean high-water line shall be landscaped with native, climate-tolerant species.

(d) Waterfront Clubs, including parking and loading facilities, shall be effectively screened from view from adjacent streets and properties.

(e) The number of Principal Buildings may exceed one (1), provided that the total Building Coverage does not exceed 25% of the Lot or Building Site Area.

(f) Auditorium, Community Center, or other Place of Assembly; Child Day-Care Center; Youth Day Camp; Restaurant; Office; Government Agencies & charitable organizations; Library; Community Garden; Green; Park; Playground; Pocket Park: Sport Field; Famers Market; Boathouses, Boat Landings, and Boat Docks; Live Music; Outdoor Dining; Rooftop Garden; Solar Panels – Freestanding; Sports Court; Solar Panels – Rooftop use(s); and seasonal employee housing shall be permitted as Accessory Use(s).

(2) Within the CD-3, CD-3C, and CD-4 zone(s):

(a) All other Use(s) that are permitted within

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the Zone shall be permitted as Accessory Use(s) to a Waterfront Club, in accordance with the applicable Use Table.

(b) Shall be subject to Section 8.4.8 Special Permit.

(3) Within the CD–3W, CD–4W, SD–MC and CV zone(s):

(a) All other Use(s) that are permitted within the Zone shall be pemritted as Accessory Use(s) to a Waterfront Club, in accordance with the applicable Use Table.

(b) Shall be subject to Section 8.4.5, Site Plan Review.

(4) Waterfront Clubs shall be exempt from installing EV charging stations below the Base Flood Elevation.

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